



POLICE DEPARTMENT

September 5, 2008

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer Jose Matos
Tax Registry No. 917948
Transit District 12
Disciplinary Case No. 81860/06

The above-named member of the Department appeared before me on March 19, 2008, charged with the following:

1. Said Police Officer Jose Matos, assigned to IAB Command Center, while off-duty, on or about February 17, 2006, in the vicinity of E. 87th Street and Lexington Avenue, New York, New York, did wrongfully and without just cause make an improper remark about a person's ethnicity, race, religion, gender or sexual orientation, to wit: said officer called [REDACTED], Traffic Enforcement Agent Supervisor, a "black bitch."

P.G. 203-10, Page 1, Paragraph 1 - PUBLIC CONTACT-PROHIBITED CONDUCT

2. Said Police Officer Jose Matos, assigned to IAB Command Center, while off-duty, on the above date and location, was discourteous to New York City Traffic Enforcement Agent Supervisor [REDACTED] in that said officer called the agent a "black bitch," and stated in sum and substance "you're not an emergency vehicle, you're no fucking body. Who do you think you are? You're nobody, you're only a TEA."

P.G. 203-09, Page 1, Paragraph 2-PUBLIC CONTACT-GENERAL REGULATIONS
P.G. 203-10, Page 1, Paragraph 4-PUBLIC CONTACT-PROHIBITED CONDUCT

3. Said Police Officer Jose Matos, assigned to IAB Command Center, while off-duty, on the above date and location, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department by failing to identify himself as a member of service to another member of service during a verbal altercation.

P.G. 203-10, Page 1, Paragraph 4 - PUBLIC CONTACT-PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by Beth Douglas, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner review.

DECISION

The Respondent is found Not Guilty of Specification Nos. 1 and 2 and Guilty of Specification No. 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called former Traffic Enforcement Agent Lisa Cherry as its witness. The Department also offered the 911 calls made by TEA supervisor Wanda Diaz and the Respondent and the CD recordings and the transcripts were admitted into evidence under Department Exhibits (DX) 1 and 1A respectively.

Lisa Cherry

Cherry is a former Traffic Enforcement Agent (TEA) Supervisor with the New York City Police Department. Cherry joined the Department on July 08, 1991, promoted to supervisor in March of 1998, and assigned to the Transit District Command, T10-3, which is located on 106th Street and Park Avenue. Cherry's duties and responsibilities as a TEA supervisor were to conduct daily roll call, administrative work and muster agents

out to their patrol posts. Cherry stated that she was "technically dismissed from the Department at this time because of medical issues." She stated that she had a [REDACTED] and was required to submit medical documentation to show that she was "still under the doctor's care." She explained that "one documentation that they asked for at the time, I thought they had already sent the papers out for medical leave. They didn't send it, so they handed me my papers that they are monitoring me." According to Cherry, she is considered "dismissed" from the Department until she submits the paperwork required by the Department and has until August 2008 to do so.

Cherry testified that on February 17, 2006, she was employed by the Department as a level one traffic supervisor. At approximately 4:25 p.m., she was with one of her Traffic Enforcement Agents, [REDACTED] in a marked Department vehicle and [REDACTED] "was issuing summons to vehicles in violation 4:00 [p.m.] until 7:00 [p.m.]." Cherry acknowledge that at that time she was on Second Avenue between the intersection of 88th Street and 87th Street where she "was just called from the base to go to an agent, it was not an emergency, but to go to them. I was coming down Second Avenue already. So, when I came --- I believe that's between 88th and 87th. I was on the right hand side. On the left hand side, I saw my agent. He was in a vehicle. I pulled over into a space, a parking space, to just observe him. Because I was already on my way to the agent." She explained, that "I stopped because I saw one of my agents sitting there. I usually would observe them or stop to sign them. When you see the agent, you sign them to show that we have seen them in their area at that time doing their duty."

Cherry was then asked that after she stopped to observe her agent if she had pulled her vehicle over into a lane of moving traffic and she replied "no, I wasn't. I

pulled out of the traffic lane. I pulled over into -- it was a space there. I believe it had -- it's like a drive -- it's a driveway to the entrance of a building. I pulled in. There was a sign there, no parking at anytime. I pulled into that spot."

Cherry testified that the agents that she was on her way to assist were located on 78th Street and Lexington Avenue. When asked by the Court what type of assistance was she going to provide to those agents she explained "usually when one of the agents call and they need a supervisor to assist them, they are asking you to bring them a spare portable ticket device," referring to the electronic ticket writing device used by traffic agents to issue summonses. She added that the agents would usually call for someone to bring them a battery for those devices. She reiterated that on her way to assist the agents she saw another one of her agents on Second Avenue between 88th Street and 87th Street and "stopped just to observe him, [t]o make sure that he was all right," because she was concerned that "he might have been having trouble with the machine." According to Cherry, the agent was basically new to the command and she "just stopped, just to observe him. To make sure he was alright."

While Cherry denied that she was parked in a traffic lane she admitted that she "was not all the way to the curb, but I was more towards the curb. I would say maybe five, six feet" away from the curb into the Second Avenue traffic lane. When asked if her vehicle was parked in the traffic lane where traffic would normally flow causing her to block traffic she answered "I'm not sure. Maybe." She then agreed that by being parked five or six feet from the curb she would have been partially into the traffic lane.

Cherry further testified that when she pulled her vehicle over and put the car in park she looked into her side view mirror and saw a vehicle "sitting behind me."

According to Cherry, the male in the vehicle then “pressed on the horn of the vehicle...It wasn’t a beeping, it was like he—like when you press it and you don’t let it go, that’s what he did.” She further explained that the car then “sped more out -- he was behind me. He sped out on my left-hand side.” She added that “I’m not sure why he honked, but he sped out -- he laid on the horn and then sped out. That’s when I looked. Then he went, not in front of me, but he was now into the turning lane.” As the vehicle sped around her she stated that she looked at the vehicle and observed “a child looked over the back seat out the rear view mirror. I mean window.” She stated that she was wondering why he was driving that way with a child in the car.

After the vehicle passed her it stopped at the red traffic light at the corner. Cherry then pulled her vehicle up next to the vehicle and, “beeped the horn. His window was up. I asked him to roll his window down. That’s when I said, ‘sir, are you alright?’” She remembered that the male said something “about the Traffic vehicle wasn’t an emergency vehicle. He said the Traffic vehicle wasn’t an emergency vehicle, and then --- that was it. By that time the light turned green. And then he called me ... ‘you fucking black bitch.’”

Cherry stated that when the light turned green the vehicle made a right hand turn on to 87th Street going towards Lexington Avenue. Cherry stated that she also made a right turn on to 87th Street, but she insisted that she was not deliberately following the vehicle that sped around her. She stated that her intention for making the turn was to go to Lexington Avenue and 78th Street to assist her agents.

Cherry further testified that when the male made the right turn, “we maybe got to the middle of the block. Maybe halfway before we get to the next stop light, which is on Third Avenue, he stopped his vehicle. He stepped on the brake and he put his vehicle in

park, and got out of his vehicle and came over to my vehicle.” Cherry stated that at that point her vehicle was between five and ten feet behind the male’s vehicle.

According to Cherry, when the male approached her vehicle she remembered “him shouting and still cursing. And he just started telling me that I was nothing but a Traffic Agent, and I didn’t know who the fuck he was.” After asking the male “who are you” she remembered saying to him “sir, they have anger management for that.” The male “really got upset” and walked back to his vehicle and Cherry “trying to remember the correct words” stated that “[h]e said something like ‘you don’t know who the fuck I am’ [and] like he could get me.”

Cherry stated that the male got back in his vehicle and drove towards Third Avenue. Cherry continued to drive behind the male and after he crossed Third Avenue he pulled into a parking space and stopped his vehicle. Cherry stated that she continued to drive straight past the vehicle.

Cherry testified she drove to 87th Street and Lexington Avenue and stopped at the red light. At that point she “heard the tires screeching on the vehicle again, and he pulled up on my left-hand side. The same motorist pulls up on the left hand side.” She stated that the “tires were screeching like the vehicles were coming fast. They might have screeched when he braked, when he stopped.” She stated that the male then got out of his car and came towards her vehicle. She further stated that she remembered “him screaming, and saying to me that -- I believed he asked me for a supervisor. Then I said, sir, I am a supervisor. He said, ‘no, I want to see your supervisor, you don’t know who the fuck I am.’” Cherry then called her base to ask for assistance “because I had an irate motorist and I didn’t know why.” Cherry spoke to Supervisor Diaz and “told her that I

have an irate motorist, he is yelling at me, he is cursing at me, and I don't understand why." She explained that she called her base because "that's the procedure." It was not procedure for her to call 911. Calling 911 would depend "on the circumstances" and in this case she felt that it was just an "irate motorist that just followed me."

Supervisor Wanda Diaz's call to 911

Supervisor Diaz called 911 on the day of the incident on behalf of Traffic Enforcement Agent Supervisor Lisa Cherry. She spoke with Police Operator 2124.

Operator 2124 asked "What is the emergency?" Diaz replied, "I'm on 87 between Park..." Operator 2124 interrupted her and requested a building number. Diaz told her it was not a building and then stated, "they're between...East 87 between Third and Lexington."

Diaz further stated, "I have a traffic supervisor. She has an irate motorist that's very argumentative and wants to hit her, so she's requesting a second car at the scene."

Operator 2124 asked Diaz if there is "any weapons involved?" Diaz responded, "She didn't say that." Diaz gave the last name of the agent, Cherry, who needed the assistance and also the phone number from where Diaz was calling from. Operator 2124 ended the call by saying "ok, they'll be there as soon as possible, okay?" (DX 1A)

At one point, officers arrived at the scene and she told them that the motorist was irate and she did not understand why. She stated that she "explained to them that I only asked if he was alright, and I only asked him that because of the child, seeing the child out the window. That he kept saying to me that I don't know who the fuck he is. I did ask the police officer, I believe I asked the police officer, find out who he is, because I don't know who he is."

Cherry was asked if she could identify the motorist in the court room and she stated that she did not remember what he looked like. Cherry also stated that there was a

female in the car on the passenger side, but she did not have a conversation with that person. She further stated that "at the time when we were waiting for assistance, she came out of the vehicle -- I'm just remembering her saying to me 'look what you did.'" That was the only statement that she remembered the female making.

Cherry stated that TEA [REDACTED] "just stood there" during the incident with the motorist and Cherry remembered "her saying to me, because I said I couldn't remember who the fuck he was. She said, ask him to show ID." Cherry did not recall [REDACTED] laughing during the incident.

On cross examination, Cherry stated that she was dismissed from the Police Department on August 28, 2007. She acknowledged that she is a traffic scofflaw for failing to pay parking tickets and was a scofflaw at the time that she was a traffic enforcement supervisor. She explained that she was unknowingly a scofflaw in that "I had a vehicle in 1995. My vehicle was set on fire. I was told, and I believe it was in approximately 2001 that I had -- that's when it was brought to my attention that I owed tickets."

Cherry also acknowledged that while she was a member of the Department she was suspended from her job and also was arrested. She acknowledged that as a result of her arrest she went before a judge and pleaded guilty to the charge of disorderly conduct.

Cherry testified that on the day of the incident she was not coming from her base at 106th Street and Park Avenue, rather she was driving down Second Avenue and her destination was 78th Street and Lexington Avenue. She stated that she decided to stop at 87th Street "because by the time Supervisor Diaz called me to 10-85 units on 78th Street and Lexington Avenue, I was already maybe pass 90th Street and Second Avenue. I'm

going slow. I believe between those blocks you can not turn, it's a no-turning street. I believe 87th Street would be my first chance for me to turn in order to get over to Lexington Avenue." She stated that by taking 87th Street to Lexington Avenue she believed she was taking the quickest way to get there. "At that time, -- I find Second Avenue to be a little bit more congested than Lexington Avenue."

When she was driving on Second Avenue she was on the right side of the street and she parked five to six feet from the curb. While she was five to six feet from the curb she again stated that she did not "believe I was blocking that lane, because there is -- even though I'm five, maybe six feet away from the sidewalk or the driveway, I'm not totally into the turning lane. I'm out of the turning lane, but I'm not all the way to the sidewalk.... To my knowledge, I wasn't obstructing the traffic lane. Even though I was six feet from the curb."

Cherry stated that she did not know how long she was parked before the male pulled up behind her. She stated that she parked her vehicle and looked in her side view mirror and that is when she noticed the vehicle behind her. She added that "I'm not going to pay any mind to him. I felt he would be asking me a question." She stated that she did not know how long the vehicle was behind her. "I know after I looked in the rear view mirror and I noticed the vehicle behind me, like I said, I thought he was going to come and ask me a question. That's when I hear the tires -- the horn and that's when I hear the horn and then the tires screeching. When I looked, I saw the vehicle out of my left side window. Then he, like, came from out of the middle lane and jumped into the traffic, the right turning lane." When she was asked, again, if the car went around her because she was blocking one of the lanes on Second Avenue she replied "I don't believe

I was blocking that lane. There was no on coming traffic. He had maybe three other lanes. To my left. There was no other traffic there.” She added “I’m saying at that time there was no traffic coming out. The motorist behind me, he had enough room. There is no traffic flowing. Maybe that is what I mean to say, no traffic flowing.”

When Cherry was asked if the motorist could have swerved around her to get by her she answered “he could of.” She added “when he was parked behind me, I would assume that he would have to come, to swerve on the side of me to come from behind me. When asked by the Court if she was at least partially parked in one of the traffic lanes on Second Avenue where she stopped her vehicle she answered “yes.” When further asked by the Court, if someone was driving in the fourth lane, the lane she was parked in, would they have had to go around her to continue down Second Avenue she replied “yes.” When further asked whether her car had to be somewhat in the middle of the traffic she replied “okay, yes.”

Cherry acknowledged that the driver of the vehicle called her a “black bitch” at the corner of 87th Street and Second Avenue. She stated that she believed the driver was driving recklessly because of “hearing the screeching of the tires. Seeing it, seeing the way he jumped into the turning lane.” She admitted that while she had the authority to call 911 or her supervisor to report that she just observed a car driving recklessly she did not do so in this case. And while she could not write a ticket for a moving violation, she could have contacted the 19th Precinct and have an officer respond to write the motorist a ticket.

Cherry reiterated that she did not follow the motorist up 87th Street, rather she made a right turn on 87th Street and was driving behind him. She further stated that

before they arrived at Third Avenue, the male stopped his vehicle and came back to her vehicle. She admitted at that point she did not call a supervisor or 911, nor did she get the plate number of the vehicle that the male was driving.

When asked if it was a common occurrence for people to get out of their cars to confront her when she had not written them a ticket, she stated "I didn't know why -- what had happen. I didn't understand why he was so upset. But at that time, maybe it didn't bother me. I can't explain it.... His outrage."

Cherry stated that when she called her supervisor she had to roll the windows up "because he is screaming and shouting -- he is coming at me, screaming and shouting outside my window." Cherry was then reminded that when she was speaking to her supervisor and told her that she was having a verbal argument with a irate motorist she made no mention of any racial epithets being used she replied "no, I don't believe I told her then, what he had said to me." She said the first time she mentioned the racial epithets was when she was taken to the 19th Precinct and told this to a police officer. She explained "the officer asked me what happen. I believe I told him, I said, ok, now he has followed me and he is still asking me, telling me that I don't know who the fuck he is. I said, well, who is he?"

Cherry stated that the female passenger did not yell at her. When asked if she raised her voice to the female passenger Cherry replied "I talk loud. I didn't raise my voice." She added that she did raise her voice to the motorist and explained "I believe when he came to the window on 87th and Lexington, I believe I was yelling. I told him to back up, because he was coming to the window. He came to the window were I was at. I

was leaning over, telling him to back up.” That was the only time she claimed that she yelled during the incident.

The Respondent’s Case

The Respondent called Nourdis Mendosa as a witness and testified in his own behalf. The Respondent also offered the out-of-court interview of Mr. [REDACTED] and the “Investigating Officer’s Report” containing the summary of that interview was admitted into evidence under Respondent’s Exhibit (RX) A.

Nourdis Mendosa

Mendosa and the Respondent have lived together for fourteen years and two of her three children are in common with the Respondent.¹ She is currently employed as an assistant teacher at [REDACTED] School, located at [REDACTED] New York, NY.

Mendosa testified that on February 17, 2006, the Respondent picked her up and two of their three children from [REDACTED]s at 4:00 p.m. and from there they were going to pay a cell phone bill at 86th Street and Lexington Avenue. From there they were going to pick up her older son from school. She stated the Respondent was driving their burgundy Mitsubishi and she was sitting in the front passenger seat, while the two children were seated in the back with their seatbelts secured.

Mendosa stated that as the Respondent was driving southbound on Second Avenue in the right lane their vehicle was cut off by a “blue police vehicle”² at 88th Street. The police vehicle cut them off “from the left side to the right” and the

¹ Mendosa and the Respondent refer to each other as husband and wife.

² Mendosa was referring to the Department’s Official Traffic Enforcement Vehicle.

Respondent “swerved” to avoid hitting it and honked the horn for “a couple of seconds.” The Respondent then stepped on the brake and Mendosa went forward and her seatbelt locked and the children started screaming. There was no response from the police vehicle as it continued driving on Second Avenue.

The Respondent continued to drive southbound on Second Avenue, in front of the police vehicle, in the direction of 87th Street. Mendosa stated that as they were approaching 87th Street, at the red light, the police car approached the left side of their vehicle and the person in the passenger seat motioned to the Respondent to lower his window. The Respondent lowered his window and said, “what is going on?” According to Mendosa, the driver of the police vehicle (hereafter Cherry) then shouted “across the passenger seat” to the Respondent that “he was being reckless and why was he honking his horn?” Mendosa stated that the Respondent told Cherry “that it was her fault, that she cut us off, and that she was endangering our lives.” At that point “Her partner was laughing. I don’t know what was amusing, but apparently she thought it was funny. The other officer, the driver, she just continued to tell Jose that she had his number and he was going to get his.” Mendosa believed that Cherry’s statement meant that they would “get tickets in the mail.” Mendosa stated that the interaction with the officer at 87th Street lasted “a couple of minutes, a minute or two” and she “was trying to calm my little one (son) because he was crying, he was afraid.”

Mendosa stated that the Respondent “did not” use foul or profane language towards Cherry nor did he use any racially-charged epithets towards her. Mendosa also denied using foul language or racially-charged language towards her.

Mendoza testified that when the light turned green she "told the Respondent to pull up the window and let's proceed" because she was interested in paying the phone bill and getting her older son, who "[REDACTED]" from school. When the Respondent made the right-hand turn on 87th Street the police car was behind them. Mendoza stated that "she [Cherry] approached us very quickly, and when the light turned red, Jose [Respondent] then got out of the car, stepped out of the car. We were already at 87th, I believe, and Third Avenue."

When the Respondent exited the vehicle he stood by the driver's door of his vehicle and said to Cherry, "what are you doing? you are going to cause us to have an accident." According to Mendoza, Cherry started yelling out of her window, "saying that he was going to get his. That she had his number. Again she continued to scream out the same thing." Mendoza "motioned to the Respondent to get back into the car 'let's go I don't want any problem, let's continue.' So that is exactly what we did."

As they approached the Third Avenue traffic light the Respondent moved his vehicle "a little to the left" to let the police vehicle pass them. When they reached Lexington Avenue they were "side-by-side" and to the left of the police car. At that point, Cherry "was yelling out the window, I couldn't hear her, I rolled the window down.... She was saying that I was an unfit mother, I was being reckless; I didn't care for my children; how could I allow this. I got annoyed because this woman does not know me. At that point, I told Jose Matos to please, I wanted a supervisor. I want him to pull over...I wanted to file a complaint against this officer who continued to pursue us."

The Respondent parked their vehicle at the corner of 87th Street and Lexington Avenue, and while Mendoza remained seated in the vehicle, the Respondent exited the

car, walked around and stood in front of his vehicle and stated to Cherry to “please call a supervisor.” Cherry, talking through her vehicle’s window that was halfway down, told the Respondent that she did not need a supervisor. The Respondent asked her again to “please get a supervisor.” According to Mendosa, when the Respondent told Cherry that he was going to “call for a supervisor, he was going to call 911” she “starts yelling back at him... “I’m a fucking supervisor, what do you need a fucking supervisor for, what are you going to do?” Mendosa stated that at that point Cherry was “getting concerned.” Mendosa told Cherry to “shut up” and stated, “yes, we need a supervisor.” Mendosa then raised her window and Cherry raised her window “and got on the cell phone.”

During this encounter Mendosa stated that the two vehicles were parked side by side and they were talking through roll down windows. The Respondent was standing in front of their vehicle and the officer in the passenger side of the police car did not “say anything. She was laughing; everything was funny.”

On cross-examination, Mendosa acknowledged that during the incident the Respondent exited his vehicle on two separate occasions. She also acknowledged that after they were cut off by the TEA vehicle she told the Respondent “you don’t have time for this, let’s not bother.” Mendosa reiterated that Cherry followed their vehicle to Third Avenue.

The Respondent

The Respondent is a 12-year member of the Department currently assigned to Transit District 12. Prior to his current command he was an investigator in the Department’s Internal Affairs Bureau.

The Respondent testified that on February 17, 2006, he was driving southbound on Second Avenue in a 1997 burgundy Mitsubishi with his wife and two children. They were enroute to the Verizon store, on 86th Street between Lexington Avenue and Third Avenue, to pay their cell phone bills and also to pick up his step-son from his school. He stated he is very familiar with the area and he was going to make a turn on 87th Street and Second Avenue, and head Westbound to Lexington Avenue.

The Respondent stated that he drove in the far right traffic lane and the only lane to the right of him was the lane where motorists could park their cars. According to the Respondent, as he approached 87th Street and Second Avenue, "all of a sudden from my peripheral vision I saw a car cutting me off. I had to slam on my brakes. I blow my horn at the car. I continued and proceeded to the traffic intersection." He stated that the car was a "NYPD Traffic vehicle." He blew his horn for a "few seconds" and did not stop his vehicle behind the Traffic vehicle; rather, he swerved around the vehicle and stopped at the red light at 87th Street.

He further testified that, "[a]t that point...the vehicle just cut us off, my kids are crying, my wife is upset. I look back into my rearview mirror and I see the same car that cut me off come right behind me, sit there for maybe half a minute or so, and then comes right up next to me." When the vehicle approached it did not have its emergency lights on---or at any other time. The driver, who the Respondent identified as Cherry, then made a motion for the Respondent to lower his window. When he lowered the window, Cherry speaking from the driver's side and across the passenger side "says, 'what is that all about?' I said, 'what do you mean, it's all about?' She said, 'your[re] blowing the horn at me.' I said, 'you almost caused us to have an accident; I had to go around you.'"

He stated that Cherry's "response was like 'well, you know, I can do what I want to do.'" And the Respondent told her "no you can't"...it's not an emergency...where is the emergency." Cherry then told him "I'm an emergency vehicle" and he told her that "you are not an emergency vehicle." The Respondent stated that, at that point, the light turned green and his wife told him "listen, just leave." The Respondent rolled up his window and made a right turn going towards Third Avenue.

The Respondent admitted to being upset that he "almost had an accident" and stated that he "had to raise my voice so she could hear what I was saying to her. She was sitting across from me on the driver's side." The Respondent stated that he did not use any foul or profane language, nor did he make any racial comment to Cherry.

The Respondent testified that after he made the right turn going towards Third Avenue "all of a sudden, I see her vehicle speeding up on my tail....I see that there is an opening [on his left side] I tell my wife, 'this lady is going to cause us to have an accident, she is in such a rush, we will let her go on. At that point, I pull over to my left. She goes on. As soon as she passes me, then I proceed with the flow of traffic."

The Respondent further testified that at 87th Street and Third Avenue "By this time my wife is upset, she says 'what is going on,' she wants a supervisor there. My kids are upset...my wife says, 'I want to make a complaint against her.'" When they reached the intersection the Traffic Enforcement vehicle is located to the right of the Respondent's vehicle "side by side....maybe a car length between both of us." According to the Respondent, he exited his vehicle and walked to the passenger side of his vehicle. He stated that he "was telling her, you know, to get a supervisor there." He explained that he exited his vehicle because Cherry's window was half open and he knew

that “she wouldn’t hear me while I was inside my car.” He further stated that he had to raise his voice to be heard and at that point she stated “what do I need a supervisor for?” and he replied that “you almost caused us to have an accident, you cut across us.” She answered “I don’t need a supervisor.” And she then made motion to her arm and further said “I’m a supervisor.” The Respondent then told her “you have someone above you, a lieutenant, a real NYPD officer that’s your supervisor. I would like to see that person.” She responded by saying, “No, I don’t have to get that person.”

The Respondent acknowledged that he did not identify himself as a police officer to Cherry, because he felt it was not necessary because it was his wife who wanted to make the complaint against Cherry and added that “It’s her right as a civilian to make that complaint.”

When he returned to his vehicle his wife wanted to know why she did not want to get a supervisor and he told her “okay, no problem” and drove to 87th Street and Lexington Avenue and parked his car. He added that the Traffic Enforcement vehicle is “on the right, the north side of 87th Street. She parks her vehicle there.” The Respondent again requested a supervisor and Cherry responded, “I don’t need a fucking supervisor, I’m a fucking supervisor.” He stated that while Cherry was screaming at him his children were present in the car. The Respondent stated that “at this point I am raising my voice because I’m shouting across basically a whole street to her. She continues on using the “F” word, ‘fucking.’” He again asked Cherry to call a supervisor and when she again refused he decided to call 911 “and get a supervisor here.” The Respondent called 911 and as he is making the call a “civilian” approaches him and asked him “what is her problem, why doesn’t she want to get a supervisor.”

Officer Matos' call to 911

The Respondent called 911 and spoke with Police Operator 2181. He stated, "yeah, hi, can I get a ... car to come – it's about a traffic agent – 720 and she almost caused us to have an accident." The operator told him that she did not hear what he said and then asked him where he wanted the police to go.

The Respondent stated, "87th Street and Lexington Avenue. I want a supervisor to respond." When Operator 2181 asked, "What's going on there sir?" the Respondent stated, "Traffic, almost causing me to have an accident." Operator 2181 repeated what the Respondent said: "a Traffic Agent almost caused you to have a traffic accident? And he confirmed by saying, "Right, right...."

Operator 2181 then told the Respondent that she was having difficulty hearing him. The Operator then asked him if he was having an issue with a traffic agent and he replied "No, no, a Traffic Agent almost caused me to have an accident." Operator 2181 then asked "And how was that possible? "What happened?" The Respondent proceeded to explain, "She cut across from the center lane all the way to the right lane and she's here arguing with me and I want a supervisor to respond."

When Operator 2181 asked the Respondent for his last name he stated, "Excuse me? I want to remain anonymous until the supervisor gets here." Operator 2181 explained to the Respondent that she needed the police to meet somebody to send the supervisor to. He then told her, "I'm on the corner of 87th Street and Lexington Avenue opposite Staples." The Respondent also provided his cell phone number to the Operator.

Operator 2181 confirmed with the Responded by saying, "Actually you're having an issue with a Traffic Agent, that's what you're trying to tell me?" and he responded by saying, "Yeah, she cut me off. She almost caused me to have an accident."

Operator 2181 again asked for his last name and he replied, "No, I want a supervisor to respond. I want a patrol supervisor." The Respondent confirmed that he was not injured and he was inside of a burgundy Mitsubishi vehicle opposite Staples.

The Respondent then asked Operator 2181 "You got the supervisor responding?" and the Operator stated, "I have it requested; if they respond or not that's up them, but I have it requested." (DX 1A)

The Respondent stated that he did not identify himself by name during the 911 call because in his "experience on patrol, usually when there is a dispute and it is over, Central puts it as a 10-85, 10-13. There was no reason, being that time of the day, rush hour, to call a 10-13 or 10-85 to put other officers' lives in danger." He stated that those

radio codes would give a member of the service immediate assistance. The Respondent also did not identify himself to Cherry at the scene because "It didn't seem necessary to do it at that point."

On cross-examination, the Respondent identified himself as a police officer to the officers who arrived at the scene of the incident by showing his identification card, but he wrongfully told them that he was assigned to the 25th Precinct. He explained that he told "them that I worked in the 25th being for the fact that I work for Internal Affairs, I felt I wouldn't be treated fairly." He further explained that "[b]eing I was from Internal Affairs, the reputation Internal Affairs has in the Police Department; I wouldn't be treated fairly on the scene."

The Respondent acknowledged that the first incident occurred at the intersection of 87th Street and Second Avenue where he was cut off by the Traffic Enforcement vehicle. He also acknowledged this is the first time in his driving history that he was cut off by a vehicle. He added that he honked his horn after being cut off because "it got me upset to the point where you know, like she almost caused me to have an accident...." He denied calling Cherry "a black bitch" and further denied telling her, "You're nothing but a fucking TEA." While he admitted to being angry at being cut off he stated that his level of anger was a one on a scale of 10.

When the Respondent was asked why he felt it was necessary to exit his vehicle on the two occasions when he could have called 911 at any time on his cell phone he replied, "At this point, my wife wants to make a complaint. She cut us off, caused us to almost have an accident. The second point, she is tailing to us (sic), getting her upset. Now we are saying 'what is going on?' We are annoyed. My wife wants to make a

complaint. I didn't want to make a complaint. That's her right as a civilian. She is asking me to get that Traffic Agent to get a supervisor. That's her right as a civilian."

The Respondent acknowledged that subsequent to this incident his wife told him that Cherry made derogatory comments about her not being a good mother during the incident and that was one of the reasons why his wife wanted to make a complaint against her.

The Respondent further acknowledged at the time he called 911, he did not identify himself as a uniformed member of the service because in his past experience if he called a 10-85 or 10-13 officers would rush to the scene.

Interview of [REDACTED]

[REDACTED] was interviewed by Internal Affairs Investigator Detective Christo Christonikos, on February 28, 2006, and a summary of the interview was recorded in Christonikos' "Investigating Officer's Report." The interview took place at Bella Vista Optics which is located at the corner of Lexington Avenue and E. 87th Street. Christonikos noted in his report that the location had "large windows facing E. 87th Street offering a view of the incident location."

According to the report, [REDACTED] told Christonikos that "he was familiar with the incident and that he spoke with Matos. When Mr. [REDACTED] looked out his window he observed the S/O [subject officer] outside his vehicle apparently attempting to stop the TEA vehicle. He did not hear any cursing by either the S/O or the TEA. As the uniformed officers arrived Mr. [REDACTED] went out and spoke with the S/O. The S/O explained he was cut off by the TEA vehicle and that he asked to see their supervisor. He

told Mr. [REDACTED] that 'they don't even know I'm a cop.' He also told Mr. [REDACTED] that 'I had to call 911, if she wanted to make a complaint, why didn't she call first.' Mr. [REDACTED] also stated that the S/O was calm and pleasant when speaking to him." (RX A)

Evidence Requested by the Court

The Court decided, after reviewing the evidence contained in Trial minutes, to reopen the case for the purpose of hearing testimony from Cherry's partner, TEA [REDACTED]. A conference was held for that purpose on June 30, 2008, and both the Assistant Department Advocate and Defense Counsel were present.

During the conference, the Assistant Department Advocate informed the Court that V [REDACTED] is no longer a member of the Department because she resigned on April 25, 2008. The Assistant Department Advocate also informed the Court that [REDACTED] "had been previously suspended related to allegations of falsifying traffic tickets." Charges for falsifying traffic tickets were pending against [REDACTED] when she resigned. While these allegations were brought to light after the incident involving the Respondent, the Department made the "decision not to call TEA [REDACTED] as a witness during the Department trial."

Also during this conference, the Department informed the Court that it was in possession of the tape and transcript of [REDACTED] official interview, but the Department declined to offer the interview as evidence in support of the Department's case. The Court then decided to admit the tape and transcript of [REDACTED] official interview into evidence under Court Exhibit (CX) 1 and 1A respectively.

Official Interview of Traffic Enforcement Agent [REDACTED]

[REDACTED] was interviewed on February 17, 2006, by Special Investigations Unit Investigators, including Detective Christos Christanokos. At that time [REDACTED] was a Traffic Enforcement Agent and her command was T103.

[REDACTED] told investigators that on February 17, 2006, at approximately 1630 hours, she was involved in an incident on Second Avenue between 87th and 88th Street in New York City. She stated that she and Traffic Enforcement Supervisor Cherry were traveling Southbound on Second Avenue when Cherry "realizes there's another agent across the street, one of our units okay and he appeared to be having trouble with his machine or something because it took him too long to write that summons. Anyway she put on her hazards, pulled to the side and we stayed there maybe about a minute or so. A few seconds after we got there a car came behind us and he started blowing his horn. So while he blew his horn then he like pulled out from behind Cherry's car and pulled to the second lane, which is second from the right lane. Then he pulled around our car and he pulled back into the right lane and when he pulled back in the front of us, she realized a child was in the car, from the way he pulled out into traffic, like endangering his family or whoever was in the car with him. So anyway she proceeded to pull beside his car, he was in the far right lane at that time and she pulled right up beside him, made him be on my side which is the passenger side okay and she asked him to roll down his window, he rolled down the window and then he proceeded to ask her, to let her know that she wasn't a fucking emergency vehicle, why the fuck did she stop there?" [REDACTED] stated that when Cherry approached the individual's car she had rolled down [REDACTED]'s window and asked him "why was he driving so recklessly with those children in the car."

█████ stated that she and Cherry made a right turn on 87th Street because they were headed down to Lexington Ave and 78th Street to assist two agents. She explained that she had already received a call to assist those agents but prior to assisting them "we saw another agent across the street that seemed to be having trouble, so she stopped to see what she can do with that agent, that's when we encountered the motorist that was behind us."

█████ was then asked by the investigator if the agent that they were observing from across the street was in his vehicle and she replied "He was in a vehicle. Okay as we proceeded right, both cars went right on 87th Street, the motorist turned right on 87th Street and we turned right on 87th Street. And after that we was between Second and Third and the guy which was the motorist he was in front of us, he stopped, he slammed on breaks, he stopped." According to █████ Cherry also stopped their vehicle and he exited his car and "came back toward our car, which is just Cherry and myself and he proceeded to tell her she didn't know who the fuck she was fucking with, you know she had no reason to ask him anything, those are his children and she was like well okay, those are your children but why are you driving recklessly like that? You need some anger management and he really got pissed off then. Okay, he got back in his car, because there were a lot of cars behind us, they were blowing their horns. So he got back in his car, we went across Third Avenue. The traffic car which is the car Cherry and I was in got stuck at the light. He pulls right on the corner. So when the light did change to green we proceeded past him, okay we were between Second and Lexington at this time. Then he catches up to us after we pass him, he pulls his car to the side at the next corner, almost to the next corner and we were here waiting for the light. He got out of his

car, he came over towards the traffic car, that's when Cherry takes her phone and she calls the base to have someone send a sector car because he's coming across the street, he's cursing. He called, well on his way across the street, you still don't know who you fucking with. Why are you fucking with me? And then he told her you ain't shit, get me a fucking supervisor now. And she said I am a supervisor. He said it's somebody over you, get the fucking lieutenant, I don't want to talk to you, you're nothing, you're a piece of TEA shit, black bitch like that. And Cherry looked at me...so Cherry said Diaz is on the phone, which is our supervisor at the base. Okay and while he yelling, his face is all but inside the car. Okay so then Diaz is calling for the Sector car and she's telling Cherry don't say anything, just wait there. So Cherry winced the window up and the guy standing outside, he's still cursing. He had a wallet in his hand. What is in it I don't know, but he never identified himself. He continued to say well we didn't know who he was. Well Cherry didn't know who he was. He didn't say anything to me. So I told Cherry ask him who he is and he said don't worry about who the fuck he is."

████ further told investigators that Diaz sent a Sector car and two scooters also arrived at the scene. A sergeant also arrived and they discussed what was going on at the location. She added that after the sector car showed up there was no further interaction between Cherry and the motorist.

████ stated that the male got out of his car on two occasions. The second time he exited his vehicle and approached their car neither █████ nor Cherry said anything to him, even though the male had his head inside the window of their car, because Cherry was on the telephone with Diaz requesting a sector car be sent to the location. When she was asked if she had any interaction with the male █████ replied "No" and further

denied having any conversation with him during the incident. [REDACTED] stated that Cherry spoke to the male in that "she told him that he needs some sense. He wouldn't identify himself. She told him maybe he could get some anger management but that was like before the sector car ever came." She stated that Cherry was calm at the scene throughout the incident and that she did not use any bad language during the interaction with the motorist.

[REDACTED] further told investigators that the second time the motorist stopped his vehicle "he pulled into like a no parking area, right there by the stop--he was out of traffic the second time." [REDACTED] stated that they did not drive past the motorist at that point because the light was red. When asked if the motorist purposely pulled to the side she stated that "He purposely pulled to the side...to wait till Cherry's car got to him." She added that, "At that time, once he pulled his car to the side, he got out of his car. He proceeded towards our car. And when he proceeded towards our car that's when he continued with the verbal assaults as far as the name calling, and then he looked, he said he had the number of the car and he was going to fuck her, whatever that was supposed to mean."

[REDACTED] told investigators that when the motorist approached the car the first time he approached on the driver's side of their vehicle. The second time he approached their vehicle he also approached on the driver's side. She stated when the motorist stuck his face in the window of the vehicle it was on the driver's side. [REDACTED] was located on the passenger side of the car.

[REDACTED] stated that the first time the motorist approached the car they could not continue driving because there were cars in front of them and the second time he

approached the car they could not proceed because there was a red light stopping them from doing so. At that time there were also cars in front of them to prevent them from moving on.

When [REDACTED] was asked what caused her to believe that the motorist was endangering his family by driving the way he was she replied "Okay. Coming up Second Avenue there's four lanes of traffic. If the right lane is semi, like she was in between a park lane and the traveling lane, okay. The light had changed for the traffic to move, and once the traffic started moving if a car ducked out in the front of that traffic, that's endangerment because once he pulls out, that could have caused an accident." When the investigator reminded [REDACTED] that it was only her opinion that the motorist was endangering his family because "he was pulling out around" their vehicle and that she was not citing something specific that the motorist was doing to endanger his family.

[REDACTED] was then asked if her vehicle was double parked she replied, "No. My vehicle was hidden, like this is our car. This is a park here.³ You're not parked totally in a parking space, but you're not in a full lane of traffic either. So when he came out from behind us, traffic on the Second Avenue was starting to flow this way and you pull out in a, in a reckless manner, that's going to cause an accident." [REDACTED] was then asked what was reckless about the manner in which the motorist pulled out and she stated "Because traffic was already coming and other car horns was blowing also because of the way he pulled out in front of the cars that was coming..."

[REDACTED] acknowledged that motorists were traveling southbound on Second Avenue and that her car was not parked in a regular parking spot, but was halfway to a

³ At this point it appears that [REDACTED] is making or pointing to a diagram to explain how her vehicle was parked.

parking spot and halfway to being double parked. She further acknowledged that her car was parked in that position because they came to assist another agent that was having trouble writing a summons. When it was pointed out to her by the investigator that the motorist had no choice but to go left and around her to get past their car she stated "But my point is as far as recklessness goes, we were sitting there, we had the hazard light on and a traffic direct light which directs traffic to go around, when he came up on us, he didn't come up on us and say okay, this car is parked here. He's gonna come up on us and lay on his horn for us to move. There are hazard lights and there's the directional arrow telling the passenger, I mean telling the motorist to go around. There was no need for you to wait until you got right up on that traffic car to swing out into traffic." She also acknowledged that the motorist stopped abruptly.

██████████ could not estimate how long they were stopped before the motorist came up behind them and beeped his horn. She stated that "It wasn't immediate, it wasn't immediate. We were already at a complete stop watching the agent across..." When asked if she or Cherry asked the agent that they were observing if the agent was having a problem and if everything was alright ██████████ first stated "Okay, but while we were stopping, it's not like we abruptly stopped, he was right up on us, we didn't stop like that if you understand what I'm saying." When further asked that since she never found out from the agent what the problem was she replied "Well no because she took on the concern of those children that was in the back car." When asked again since she never had a chance to check what the agent's problem was that their stopping their vehicle and the motorist coming up behind them must have happened "fairly quick" she replied "I would say quick, quick. He had enough time to change lanes. Because he turned, he had

to have, I'm not sure." When asked if she noticed that the children in the back seat were buckled in or were sitting in child seats she stated "I don't know. I know he didn't have his seatbelt on, that I know because he was sitting right next to me when she was talking to him."

FINDINGS AND ANALYSIS

Specification Nos. 1 and 2

The Respondent is charged with the following: while off duty on or about February 17, 2006, in the vicinity of E. 87th Street and Lexington Avenue he made an improper remark to Lisa Cherry in that he called her a "black bitch." He is also charged with being discourteous to Cherry where he stated "you're not an emergency vehicle, you're no fucking body. Who do you think you are? You're nobody, you're only a TEA."

This case involves two opposing versions as to what took place between Cherry and the Respondent on February 17, 2006. This Court's decision, therefore, will rely on which version appears to be the most credible.

The complainant Lisa Cherry and her former partner and eyewitness, M [REDACTED] [REDACTED] are former Traffic Enforcement Agents whose individual separation from the Department were under circumstances that this Court views as unusual (Cherry) and unacceptable and inexcusable [REDACTED]: Cherry was "technically dismissed" from the Department, on August 28, 2007, for not providing paperwork to the Department indicating that she is under a doctor's care after suffering a heart attack. She stated that she was given one year from August 2007 to provide that paperwork, but as of the date of

this trial it appears that she has made no concerted effort to provide that information to the Department. Cherry also testified that she had been previously arrested and suspended from her job and subsequent to that arrest pled guilty to disorderly conduct.

██████ resigned from the Department on April 28, 2008, with charges pending against her for falsifying traffic tickets. Her resignation indicates to this Court that she resigned rather than face likely termination for falsifying Department records. She did not testify at this trial and her hearsay statements were admitted into evidence in lieu of her appearance.

The Respondent is a 12-year member of the Department and was assigned to the Department's Internal Affairs Bureau at the time of the incident and is currently assigned to Transit District 12. He testified in his own behalf and his wife Nourdis Mendosa testified as an eyewitness to the incident.

At the outset it is undisputed that the Respondent and Cherry encountered one another on Second Avenue in the vicinity of 87th and 88th Streets. Cherry and ██████ claimed that they first observed the Respondent when they were parked observing another agent in a Department vehicle across Second Avenue. They claimed that the Respondent pulled up behind them and began blowing his horn. The Respondent and Mendosa claimed that Cherry drove in front of them and essentially cut them off, putting them in danger of getting into an accident.

While it is not in dispute that this incident began on Second Avenue, this Court finds that Cherry was inconsistent in her description of the events during trial and her testimony contained further inconsistencies with statements made by Diaz during her 911 call and, in pertinent part, with statements made by ██████.

Cherry was driving on Second Avenue in a marked Department vehicle and [REDACTED] was in the passenger seat. At one point they received a call from their command directing them to proceed to 78th Street and Lexington Avenue to assist agents on duty. Cherry was not specific about what assistance they were going to provide the agents other than assistance usually meant bringing them a spare battery for their portable ticket device.

Based on Cherry's explanation of the assistance she was going to provide those agents, it appears to this Court that the agents were incapable or having difficulty performing their assigned duties of issuing summonses and would continue to be in that predicament until Cherry arrived to get their machine functional. While enroute to assist these agents, however, Cherry stated that she saw another one of her agents on Second Avenue between 88th and 87th Streets "sitting there" in his vehicle and she just wanted to stop to "observe him to make sure that he was all right." She was concerned that he also might be having trouble with his machine because he was new to the command and she wanted him to know that she was there observing him doing his duty in that area.

[REDACTED] noted that Cherry realized "there's another agent across the street, one of our units okay and he appeared to be having trouble with his machine or something because it took him too long to write that summons."

Cherry claims to have first encountered the Respondent when she stopped her vehicle to watch that agent and the Respondent suddenly appeared behind her. She claimed to have parked her vehicle in a "parking space" and when she looked in her side view mirror, she saw his "vehicle sitting behind me." She did not know how long the vehicle was there and thought he was going to ask her questions. Moreover, she insisted

that she did not park her vehicle in a lane of moving traffic, but “pulled out of the traffic lane.” [REDACTED] stated that they pulled to the side and after putting on their hazard lights stayed there for about a minute or so and then a car “came behind us and he started blowing his horn.”

Cherry’s insistence that she was not parked in a traffic lane led to further questioning. At one point she changed her testimony and admitted that she was parked five to six feet from the curb, but remained adamant that she was not parked in the traffic lane and obstructing traffic. It was only after further questioning did she again change her testimony and admitted that she was at least partially blocking the traffic lane and that someone driving in the fourth lane, the lane she was in, would have had to go around her to continue down Second Avenue.

Cherry described how he “pressed on the horn of the vehicle” and that she heard tires screeching and the car then “sped out on my left-hand side.... I’m not sure why he honked, but he sped out – he laid on the horn and then sped out.”

According to Cherry, the Respondent drove his car in front of hers’ and into the turning lane and he stopped at the red light. As the vehicle sped around her she observed a child looking out of the rear window. She then wondered why he was driving that way with a child in the car and believed that the driver was driving recklessly because of his screeching tires and the way he drove his car into the turning lane.

Cherry then decided to drive her vehicle next to the Respondent’s. She beeped her horn, and told him to “roll his window down.” She then asked him “Sir, are you all right?” She then told this Court that the male said something “about the Traffic vehicle wasn’t an emergency vehicle. He said the Traffic vehicle wasn’t an emergency vehicle,

and then – that was it. By that time the light turned green. And then he called me ... ‘you fucking black bitch’” which she firmly acknowledged was at the corner of 87th Street and Second Avenue.

When the light turned green the Respondent made a right hand turn onto 87th Street going towards Lexington Avenue. Cherry decided that she was also going to make a right turn on 87th Street and proceeded to drive directly behind the Respondent. She insisted, however, that she was not deliberately following the Respondent but was on her way to assist the other agents on Lexington Avenue and explained that 87th Street was the quickest way to get there.

At this point this Court finds two more inconsistencies with Cherry’s testimony. First, Cherry made it a point to inform this Court that she was concerned about the agent on Second Avenue having some kind of problems in performing his duties. She was not only going to observe him because he was new to the command she was also going to let him know that she was at the location by signing his book or some other document to let him know that she was there. Her decision to watch him was more important than rushing to the aid of the other agents on Lexington Avenue. But her testimony again was inconsistent with her prior concern for the agent when she stated that after the Respondent passed her vehicle she left her parking spot to pull up along side of him. The new agent was no longer a primary concern of hers even though there was no apparent urgency for her to leave him.

Her second inconsistency is of major concern to this Court. It involves the most serious allegation in this case: the alleged racial epithet made by the Respondent. The inconsistency lies between Cherry’s testimony and [REDACTED] statements to investigators.

Cherry was clear in her testimony that the Respondent called her a “fucking black bitch” at the corner of Second Avenue and 87th Street. [REDACTED] however, clearly told investigators that after Cherry stopped to talk to the Respondent on Second Avenue, the Respondent made a right turn and drove down 87th Street and Cherry followed.

According to [REDACTED] the Respondent “slammed on the brakes” and exited his vehicle between Second and Third Avenues. The Respondent then approached their vehicle and had words with Cherry. The Respondent then “got back in his car, we went across Third Avenue.” She stated they got stuck at the light and “He pulls right on the corner. So when the light did change to green we proceeded past him, okay we were between Second and Lexington at this time. Then he catches up to us after we pass him, he pulls his car to the side at the next corner, almost to the next corner and we were here waiting for the light. He got out of his car, he came over towards the Traffic car, that’s when Cherry takes her phone and she calls the base to have someone send a sector car because he’s coming across the street, he’s cursing. He called, well on his way across the street, you still don’t know who you fucking with. Why are you fucking with me? And then he told her you ain’t shit, get me a fucking supervisor now. And she said I am a supervisor. He said it’s somebody over you, get the fucking lieutenant, I don’t want to talk to you, you’re nothing, you’re a piece of TEA shit, black bitch like that.”

[REDACTED] statement to investigators about the alleged racial epithet leaves this Court to question the credibility of both Cherry and [REDACTED] Cherry was adamant that the epithet took place on Second Avenue and 87th Street immediately after they encountered each other. [REDACTED] version has the epithet made after they were driving through the streets and at the time Cherry was about to call Diaz. One thing is clear to

this Court, there is no evidence indicating that more than one racial epithet was made. Therefore, either Cherry or [REDACTED], or both, are not being forthright about the Respondent making that statement.

This Court further finds that there is yet another major inconsistency in Cherry's version of the incident. This inconsistency involves her asking Diaz to call 911. According to Cherry, she and the Respondent had another encounter at a traffic light at Lexington Avenue. The Respondent asked again for her supervisor and Cherry called for assistance. Cherry spoke to Diaz, her supervisor, and told her that an irate motorist was yelling at her and she did not understand why. Diaz then called 911.

Diaz was not present at any time during the incident. When she called 911 the information she gave to the operator came directly from Cherry. Diaz gave Cherry's location and then told the operator "I have a Traffic supervisor. She has an irate motorist that's very argumentative and wants to hit her, so she's requesting a second car at the scene." (DX 1A) Nowhere in Diaz's conversation did she inform the operator that the motorist made a very serious racial comment by calling Cherry a "fucking black bitch."

In this Court's opinion this is a very serious omission on the part of Cherry. The racial epithet would have been a very strong indication to Diaz of just how irate the motorist was and yet Cherry failed to mention it to her at the time that the incident was still taking place. When Cherry was confronted with the fact that she made no mention of the racial epithet to Diaz she replied "no, I don't believe I told her then, what he said to me." Moreover, the first time she mentioned the racial epithets was when she was interviewed by the police at the 19 Precinct and that was presumably after she had asked

the police officer to “find out who he is” and was told that the motorist that she had the incident with was a police officer.

Cherry’s numerous inconsistencies leave this Court with serious doubts as to her version of what occurred during her encounter with Respondent. The Respondent’s version, in contrast, has a ring of truth to it and more credibly explains what occurred during this incident.

The Respondent told this Court that he was driving to the Verizon store on 86th Street between Lexington and Third Avenue with his wife and two children. While he was driving in the far right traffic lane on Second Avenue, with the parking lane to his right “all of a sudden from my peripheral vision I saw a car cutting me off. I had to slam on my brakes. I blow my horn at the car. I continued and proceeded to the traffic intersection.” He stated that the car was a “NYPD Traffic vehicle.” He blew his horn for a “few seconds” and did not stop his vehicle behind the Traffic vehicle; rather, he swerved around the vehicle and stopped at the red light at 87th Street. He further testified that, “[a]t that point...the vehicle just cut us off, my kids are crying, my wife is upset. I look back into my rearview mirror and I see the same car that cut me off come right behind me, sit there for maybe half a minute or so, and then comes right up next to me.”

Cherry then made a motion for the Respondent to lower his window. When he lowered the window, Cherry speaking from the driver’s side and across the passenger side “says, ‘what is that all about?’ I said, ‘what do you mean, it’s all about?’ She said, ‘your[re] blowing the horn at me.’ I said, ‘you almost caused us to have an accident; I had to go around you.’” He stated that Cherry’s “response was like ‘well, you know, I can do what I want to do.’” And the Respondent told her “no you can’t”...it’s not an

emergency...where is the emergency.” Cherry then told him “I’m an emergency vehicle” and he told her that “you are not an emergency vehicle.”

The Respondent admitted to being upset by the fact that he almost had an accident and that he raised his voice when he spoke to Cherry. The Respondent, however, denied using foul or profane language and further denied making any racial comments to Cherry.

When the Respondent continued with his trip and turned right on 87th Street towards Third Avenue he observed Cherry’s vehicle speeding up behind him and fearing her hitting his vehicle he pulled over and let her pass him. The Respondent testified that at this point his wife wants to make a complaint against Cherry.

Once Cherry’s vehicle passes his they ended up side by side at the intersection. The Respondent exited his vehicle and walked to the passenger side of his vehicle and told Cherry to get a supervisor. When Cherry asked him why does she need a supervisor he told her that she “almost caused us to have an accident.” Cherry told him that she “don’t need a supervisor...I’m a supervisor.” The Respondent then asked for her lieutenant and she responded with that she “don’t have to get that person.” The Respondent acknowledged that he did not identify himself as a police officer and excused his doing so by explaining that it was his wife who wanted to make a complaint against Cherry.

At 87th Street and Lexington Avenue the Respondent again asked Cherry to call a supervisor and she told him “I don’t need a fucking supervisor, I’m a fucking supervisor.” The Respondent stated that they are both raising their voices at each other and when Cherry again refused to call a supervisor he decided to call 911.

Mendoza, also stated that as they were driving along Second Avenue, when a blue police vehicle cut them off. She stated that the vehicle cut them off "from the left side to the right" and the Respondent "swerved" to avoid hitting it and honked the horn for "a couple of seconds." The Respondent then stepped on the brake and Mendoza went forward and her seatbelt locked and the children started screaming. There was no response from the Traffic vehicle as it continued driving on Second Avenue.

Mendoza stated that as they approached 87th Street, at the red light, the Traffic vehicle approached the left side of their vehicle and [REDACTED] motioned to the Respondent to lower his window. The Respondent lowered his window and said, "What is going on?" According to Mendoza, Cherry, then shouted "across the passenger seat" to the Respondent that "he was being reckless and why was he honking his horn?" Mendoza stated that the Respondent told Cherry "that it was her fault, that she cut us off, and that she was endangering our lives." Cherry continued to tell the Respondent that she had his number and he was going to get his." Mendoza believed that Cherry's statement meant that she was going to get tickets in the mail.

Mendoza then told the Respondent to proceed to the Verizon store because they had to pay a bill and then pick up their other son from school. When they made the right turn at 87th Street, and drove towards Third Avenue, Cherry drove up behind them at a high rate of speed. At the traffic light the Respondent exited his vehicle and asked Cherry "What are you doing? You are going to cause us to have an accident."

As they approached the Third Avenue traffic light the Respondent let the Traffic vehicle pass them. When they reached Lexington Avenue they were "side-by-side" and to the left of the Traffic car. At that point, Cherry "was yelling out the window saying

that Mendosa was an unfit mother, "I was being reckless; I didn't care for my children; how could I allow this. I got annoyed because this woman does not know me. At that point, she told the Respondent that she wanted to file a complaint against Cherry.

The Respondent parked their vehicle at the corner of 87th Street and Lexington Avenue, and the Respondent exited the car, and told Cherry to "please call a supervisor." Cherry, talking through her vehicle's window that was halfway down, told the Respondent that she did not need a supervisor. The Respondent asked her again to "please get a supervisor." According to Mendosa, when the Respondent told Cherry that he was going to "call for a supervisor, he was going to call 911" she "starts yelling back at him... "I'm a fucking supervisor, what do you need a fucking supervisor for, what are you going to do?" Mendosa stated that at that point Cherry was "getting concerned...and got on the cell phone."

The Respondent denied calling Cherry a "black bitch" and further denied telling her "you're nothing but a fucking TEA." This Court finds his denials credible because along with Cherry's inconsistent testimony, it further finds it highly unlikely that he would speak to Cherry in that manner knowing that she is a member of the Department and then insisting that he wanted to speak to her supervisor. He had to know that when a supervisor responded to the scene anything that was said between them would be relayed to the supervisor. In addition, the Respondent at that time was a member of the Internal Affairs Bureau and as such he also had to know that once he insisted on calling 911, police would respond and statements would be taken of each participant to the incident. As an investigator he had to know that if he made any racial remarks to Cherry, his calling 911 would have brought those remarks to the attention of the responding officers.

Based on the foregoing, this Court was not presented with the necessary credible evidence for a finding of guilt against the Respondent.

Accordingly, I find the Respondent Not Guilty of Specification Nos. 1 and 2.

Specification No. 3

The Respondent is further charged with failing to identify himself as a member of service “to another member of service [Cherry] during a verbal altercation.”

It is not in dispute that the Respondent did not identify himself to Cherry during the entire incident. This Court therefore finds him Guilty of this Specification because it is clear that had he done so this incident would not have escalated to the point of them driving through the streets of Manhattan and stopping at different locations to continue their argument. The situation would have been under control at the moment it began if he had identified himself as a police officer and there would not have been a reason to call 911 and take officers away from any and possibly more serious situations that may have required their valuable time.

Accordingly, the Respondent is found Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent’s service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 18, 1996. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of conduct prejudicial to the Department in that he failed to identify himself to another member of service during an incident with a Traffic Enforcement Agent. As this Court previously stated had the Respondent identified himself to Cherry he could have prevented the incident from escalating past their initial encounter and avoided the calling of 911.

Based on the foregoing, I recommend that the Respondent forfeit a penalty of 5 vacation days.

APPROVED
JOSE MATOS
POLICE COMMISSIONER

Respectfully submitted,
John Grappone
Assistant Deputy Commissioner - Trials